

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER

3. SOLICITATION NUMBER

4. TYPE OF SOLICITATION

- ☐
- SEALED BID (IFB) INVITATION FOR BID
-
- ☐
- NEGOTIATED (RFP) REQUEST FOR PROPOSAL

5. DATE ISSUED

6. REQUISITION/PURCHASE NUMBER

7. ISSUED BY

CODE

8. ADDRESS OFFER TO (If other than item 7)

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL: 	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION	

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	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
	E	INSPECTION AND ACCEPTANCE			K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
	F	DELIVERIES OR PERFORMANCE			L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	
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OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. ☐		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Theater Deployable Communications Contractor Logistics Support Follow On

Product Service Code: R706

North American Industry Classification System (NAICS): 541614
Date: 30 Apr 2025

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0001	Contractor Logistics Support (CLS) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. Total Firm Fixed Price for this CLIN: _____				
0002	Data (NSP) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all Base CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026				
0003	Repair Management Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,331,935				
0004	Spares Purchase Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5895 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026				

	C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,014,602				
0005	Equipment Shipping Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$300,358				
0006	Bench Stock Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$146,030				
0007	Consumables Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$88,586				
0008	Travel Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS).				

	B. The Period of Performance (PoP) for this CLIN is 17 October 2025 - 16 October 2026 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$16,461				
Option Line Item 1001	Contractor Logistics Support (CLS) (Option Year 1) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. Total Firm Fixed Price for this CLIN: _____				
Option Line Item 1002	Data (NSP) (Option Year 1) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027				
Option Line Item 1003	Repairs Management (Option Year 1) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,715,393				
Option Line Item 1004	Spares Purchase (Option Year 1) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5895 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS).				

	B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,035,909				
Option Line Item 1005	Equipment Shipping (Option Year 1) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$306,665				
Option Line Item 1006	Bench Stock (Option Year 1) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$149,096				
Option Line Item 1007	Consumables (Option Year 1) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$90,446				
	Travel (Option Year 1) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data:				

Option Line Item 1008	A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2026 - 16 October 2027 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$16,807				
Option Line Item 2001	Contractor Logistics Support (CLS) (Option Year 2) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. Total Firm Fixed Price for this CLIN: _____				
Option Line Item 2002	Data (NSP) (Option Year 2) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028				
Option Line Item 2003	Repairs Management (Option Year 2) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$2,945,720				
	Spares Purchase (Option Year 2) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5895 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data:				

Option Line Item 2004	A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,057,663				
Option Line Item 2005	Equipment Shipping (Option Year 2) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$313,105				
Option Line Item 2006	Bench Stock (Option Year 2) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$152,227				
Option Line Item 2007	Consumables (Option Year 2) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$92,345				
	Travel (Option Year 2) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		

Option Line Item 2008	Additional Descriptive Data: A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2027 - 16 October 2028 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$17,160				
Option Line Item 3001	Contractor Logistics Support (CLS) (Option Year 3) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. Total Firm Fixed Price for this CLIN: _____				
Option Line Item 3002	Data (NSP) (Option Year 3) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029				
Option Line Item 3003	Repairs Management (Option Year 3) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$3,007,581				
	Spares Purchase (Option Year 3) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5895 Pricing Arrangement: Cost No Fee	1	Lot		

Option Line Item 3004	Additional Descriptive Data: A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,079,874				
Option Line Item 3005	Equipment Shipping (Option Year 3) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$319,680				
Option Line Item 3006	Bench Stock (Option Year 3) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$155,424				
Option Line Item 3007	Consumables (Option Year 3) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$94,285				
	Travel (Option Year 3)	12	Months		

Option Line Item 3008	Product Service Code: R706 Pricing Arrangement: Cost No Fee				
	Additional Descriptive Data: A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2028 - 16 October 2029 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$17,520				
Option Line Item 4001	Contractor Logistics Support (CLS) (Option Year 4) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. Total Firm Fixed Price for this CLIN: _____				
Option Line Item 4002	Data (NSP) (Option Year 4) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030				
Option Line Item 4003	Repairs Management (Option Year 4) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$3,070,740				
	Spares Purchase (Option Year 4) Part Reference Number: As required IAW the Performance Work Statement	1	Lot		

Option Line Item 4004	Product Service Code: 5895 Pricing Arrangement: Cost No Fee				
	Additional Descriptive Data: A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$1,102,551				
Option Line Item 4005	Equipment Shipping (Option Year 4) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$326,393				
Option Line Item 4006	Bench Stock (Option Year 4) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$158,688				
Option Line Item 4007	Consumables (Option Year 4) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$96,265				

Option Line Item 4008	Travel (Option Year 4) Product Service Code: R706 Pricing Arrangement: Cost No Fee	12	Months		
	Additional Descriptive Data: A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS). B. If Exercised, the Period of Performance (PoP) for this CLIN is 17 October 2029 - 16 October 2030 C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$17,888				
Option Line Item 4011	Contractor Logistics Support (CLS) (Optional 6 Month Period) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	6	Months		
	Additional Descriptive Data: A. The Contractor shall provide Contractor Logistics Support for Theater Deployable Communications (TDC) Systems IAW Attachment 1, Performance Work Statement (PWS). B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. Total Firm Fixed Price for this CLIN: _____				
Option Line Item 4012	Data (NSP) (6 Month Option) Product Service Code: R706 Pricing Arrangement: Firm Fixed Price	6	Months		
	Additional Descriptive Data: A. The Contractor shall provide data, as required, for all CLINs. B. Data shall be delivered IAW Exhibit A to the following email address: aflcmc.hni.data.manager@us.af.mil. C. This CLIN is Not Separately Price (NSP). D. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031.				
Option Line Item 4013	Repairs Management (6 Month Option) Product Service Code: R706 Pricing Arrangement: Cost No Fee	6	Months		
	Additional Descriptive Data: A. The Contractor shall provide Theater Deployable Communications (TDC) repair management IAW Attachment 1, Performance Work Statement (PWS). Materials Only. B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$365,268				

Option Line Item 4014	Spares Purchase (6 Month Option) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5895 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall provide replacement and new spares for shelf stock of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$562,853				
Option Line Item 4015	Equipment Shipping (6 Month Option) Product Service Code: R706 Pricing Arrangement: Cost No Fee	6	Months		
	Additional Descriptive Data: A. The Contractor shall provide shipping of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$166,624				
Option Line Item 4016	Bench Stock (6 Month Option) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 9999 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase bench stock items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS). B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$81,010				
Option Line Item 4017	Consumables (6 Month Option) Part Reference Number: As required IAW the Performance Work Statement Product Service Code: 5995 Pricing Arrangement: Cost No Fee	1	Lot		
	Additional Descriptive Data: A. The Contractor shall purchase consumable items in support of Theater Deployable Communications (TDC) equipment IAW Attachment 1, Performance Work Statement (PWS).				

	B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$49,143				
Option Line Item 4018	Travel (6 Month Option) Product Service Code: R706 Pricing Arrangement: Cost No Fee	6	Months		
	Additional Descriptive Data: A. The Contractor shall provide travel in support of Theater Deployable Communications (TDC) IAW Attachment 1, Performance Work Statement (PWS). B. This is an Option CLIN for continued performance IAW FAR 52.217-8. If needed, this Option may be exercised in monthly increments, as necessary, with a maximum Period of Performance (PoP) of 17 October 2030 - 16 April 2031. C. The total estimated Not to Exceed (NTE) ceiling for this CLIN is \$9,132				

Section C - Description/Specifications/Statement of Work

Work and products called for by the Contract Line Items Numbers under Section B shall be performed in accordance with the Section J Attachments.

Requirements

Theater Deployable Communications Contractor Logistics Support

Section D - Packaging and Marking

In accordance with the Section J Attachments.

Section E - Inspection and Acceptance

Inspection and Acceptance shall be conducted at the destination by the Government approved official and IAW Section J Attachments.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-3	Inspection of Supplies-Cost-Reimbursement.	May 2001		
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		
52.246-16	Responsibility for Supplies.	Apr 1984		
Overall Contract Inspection/Acceptance Locations				
0001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil			
0002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil			
0003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil			
0004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA			

	FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
0005	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
0006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
0007	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
0008	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
	Inspection and Acceptance Location

Option Line Item 1001	Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1005	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES

	Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1007	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 1008	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA

	FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2005	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
	Inspection and Acceptance Location

Option Line Item 2007	Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 2008	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES

	Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3005	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3007	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 3008	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA

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Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4003	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4004	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
	Inspection and Acceptance Location

Option Line Item 4005	Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4006	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4007	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4008	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4011	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES

	Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4012	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4013	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4014	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4015	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4016	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA

	FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4017	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil
Option Line Item 4018	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/Inspection criteria. DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES Lt Col Erika Leach Email: erika.leach.1@us.af.mil

Section F - Deliveries or Performance

In Accordance with the Section J Attachments.

Line Item	Delivery Schedule	Quantity	Address and POC	Special Handling/Notes
0001	Partial Delivery Schedule Delivery Period From 17 Oct 2025 to 16 Oct 2026 12 Months	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
0002	Partial Delivery Schedule Delivery Period From 17 Oct 2025 to 16 Oct 2026 12 Months	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
0003	Partial Delivery Schedule Delivery Period From 17 Oct 2025 to 16 Oct 2026 12 Months	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
0004	Delivery Period From 17 Oct 2025 to 16 Oct 2026	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
0005	Partial Delivery Schedule Delivery Period From 17 Oct 2025 to 16 Oct 2026 12 Months	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
0006	Delivery Period From 17 Oct 2025 to 16 Oct 2026	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
0007	Delivery Period From 17 Oct 2025 to 16 Oct 2026	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
0008	Partial Delivery Schedule Delivery Period From 17 Oct 2025 to 16 Oct 2026 12 Months Period of Performance	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	

	From 17 Oct 2025 To 17 Oct 2026			
Option Line Item 1001	Partial Delivery Schedule Delivery Period From 17 Oct 2026 to 16 Oct 2027 12 Months Period of Performance From 17 Oct 2026 To 16 Oct 2027	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 1002	Partial Delivery Schedule Delivery Period From 17 Oct 2026 to 16 Oct 2027 12 Months Period of Performance From 17 Oct 2026 To 16 Oct 2027	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 1003	Partial Delivery Schedule Delivery Period From 17 Oct 2026 to 16 Oct 2027 12 Months Period of Performance From 17 Oct 2026 To 16 Oct 2027	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 1004	Delivery Period From 17 Oct 2026 to 17 Oct 2027	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 1005	Partial Delivery Schedule Delivery Period From 17 Oct 2026 to 16 Oct 2027 12 Months Period of Performance From 17 Oct 2026 To 16 Oct 2027	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 1006	Delivery Period From 17 Oct 2026 to 16 Oct 2027	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN	FoB Details Contractor Destination

			CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 1007	Delivery Period From 17 Oct 2026 to 16 Oct 2027	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 1008	Partial Delivery Schedule Delivery Period From 17 Oct 2026 to 16 Oct 2027 12 Months Period of Performance From 17 Oct 2026 To 16 Oct 2027	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 2001	Partial Delivery Schedule Delivery Period From 17 Oct 2027 to 16 Oct 2028 12 Months Period of Performance From 17 Oct 2027 To 16 Oct 2028	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 2002	Partial Delivery Schedule Delivery Period From 17 Oct 2027 to 16 Oct 2028 12 Months Period of Performance From 17 Oct 2027 To 16 Oct 2028	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 2003	Partial Delivery Schedule Delivery Period From 17 Oct 2027 to 16 Oct 2028 12 Months Period of Performance From 17 Oct 2027 To 16 Oct 2028	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 2004	Delivery Period From 17 Oct 2027 to 16 Oct 2028	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination

Option Line Item 2005	Partial Delivery Schedule Delivery Period From 17 Oct 2027 to 16 Oct 2028 12 Months Period of Performance From 17 Oct 2027 To 16 Oct 2028	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 2006	Delivery Period From 17 Oct 2027 to 16 Oct 2028	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 2007	Delivery Period From 17 Oct 2027 to 16 Oct 2028	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 2008	Partial Delivery Schedule Delivery Period From 17 Oct 2027 to 16 Oct 2028 12 Months Period of Performance From 17 Oct 2027 To 16 Oct 2028	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 3001	Partial Delivery Schedule Delivery Period From 17 Oct 2028 to 16 Oct 2029 12 Months Period of Performance From 17 Oct 2028 To 16 Oct 2029	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 3002	Partial Delivery Schedule Delivery Period From 17 Oct 2028 to 16 Oct 2029 12 Months Period of Performance From 17 Oct 2028 To 16 Oct 2029	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
	Partial Delivery Schedule Delivery Period	12 Months	Ship To DoDAAC: FA8726	

Option Line Item 3003	From 17 Oct 2028 to 16 Oct 2029 12 Months Period of Performance From 17 Oct 2028 To 16 Oct 2029		CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 3004	Delivery Period From 17 Oct 2028 to 16 Oct 2029	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 3005	Partial Delivery Schedule Delivery Period From 17 Oct 2028 to 16 Oct 2029 12 Months Period of Performance From 17 Oct 2028 To 16 Oct 2029	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 3006	Delivery Period From 17 Oct 2028 to 16 Oct 2029	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 3007	Delivery Period From 17 Oct 2028 to 16 Oct 2029	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 3008	Partial Delivery Schedule Delivery Period From 17 Oct 2028 to 16 Oct 2029 12 Months Period of Performance From 17 Oct 2028 To 16 Oct 2029	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4001	Partial Delivery Schedule Delivery Period From 17 Oct 2029 to 16 Oct 2030 12 Months Period of Performance From 17 Oct 2029	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	

	To 16 Oct 2030			
Option Line Item 4002	Partial Delivery Schedule Delivery Period From 17 Oct 2029 to 16 Oct 2030 12 Months Period of Performance From 17 Oct 2029 To 16 Oct 2030	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4003	Partial Delivery Schedule Delivery Period From 17 Oct 2029 to 16 Oct 2030 12 Months Period of Performance From 17 Oct 2029 To 16 Oct 2030	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4004	Delivery Period From 17 Oct 2029 to 16 Oct 2030	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 4005	Partial Delivery Schedule Delivery Period From 17 Oct 2029 to 16 Oct 2030 12 Months Period of Performance From 17 Oct 2029 To 16 Oct 2030	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4006	Delivery Period From 17 Oct 2029 to 16 Oct 2030	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 4007	Delivery Period From 17 Oct 2029 to 16 Oct 2030	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSKOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
	Partial Delivery Schedule Delivery Period From 17 Oct 2029 to 16 Oct 2030 12 Months	12 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN	

Option Line Item 4008	Period of Performance From 17 Oct 2029 To 16 Oct 2030		CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4011	Partial Delivery Schedule Delivery Period From 17 Oct 2030 to 16 Apr 2031 6 Months Period of Performance From 17 Oct 2030 To 16 Apr 2031	6 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4012	Partial Delivery Schedule Delivery Period From 17 Oct 2030 to 16 Apr 2031 6 Months Period of Performance From 17 Oct 2030 To 16 Apr 2031	6 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4013	Partial Delivery Schedule Delivery Period From 17 Oct 2030 to 16 Apr 2031 6 Months Period of Performance From 17 Oct 2030 To 16 Apr 2031	6 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	
Option Line Item 4014	Delivery Period From 17 Oct 2030 to 16 Apr 2031	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 4015	Delivery Period From 17 Oct 2030 to 16 Apr 2031 Period of Performance From 17 Oct 2030 To 16 Apr 2031	6 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	

Option Line Item 4016	Delivery Period From 17 Oct 2030 to 16 Apr 2031	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 4017	Delivery Period From 17 Oct 2030 to 16 Apr 2031	1 Lot	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	FoB Details Contractor Destination
Option Line Item 4018	Partial Delivery Schedule Delivery Period From 17 Oct 2030 to 16 Apr 2031 6 Months Period of Performance From 17 Oct 2030 To 16 Apr 2031	6 Months	Ship To DoDAAC: FA8726 CountryCode: USA FA8726 AFLCMC HNK C3IN CP 781 225 4641, 9 EGLIN ST BLDG 1606 HANSCOM AFB, MA 01731-2100 UNITED STATES	

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984
52.242-17	Government Delay of Work.	Apr 1984		
52.247-34	F.o.b. Destination.	Nov 1991		

Section G - Contract Administration Data

ADMINISTRATIVE INFORMATION:

- a. Contracting Specialist: Adam Walker
- b. Contracting Officer: Filomena Gomez
- c. Office Symbol of PCO: AFLCMC/HNIK
- d. Telephone Number:(380) 456-2443
- e. E-mail Address: filomena.gomez@us.af.mil

PROGRAM MANAGER:

- a. Program Manager: Lt Col Erika Leach
- b. Organization: AFLCMC/HNIB
- c. Address: 3 Eglin Street, Building 1612, Hanscom AFB, MA 01731
- d. Telephone Number:(781) 225-0000
- e. E-Mail Address: erika.leach.1@us.af.mil

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

As prescribed in 232.7004(b), use the following clause:

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>TBD</u>
Issue By DoDAAC	<u>FA8726</u>
Admin DoDAAC	<u>FA8726</u>
Inspect By DoDAAC	<u>FA8726</u>
Ship To Code	<u>FA8726</u>
Ship From Code	<u>See Section F</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>See Section F</u>
Service Acceptor (DoDAAC)	<u>FA8726</u>
Accept at Other DoDAAC	<u>FA8726</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

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(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

The Contracting Officer

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-16	Preventing Personal Conflicts of Interest.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-12	Unique Entity Identifier Maintenance.	Oct 2016		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-14	Service Contract Reporting Requirements.	Oct 2016		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications.	Nov 2021		
52.215-23	Limitations on Pass-Through Charges.	Jun 2020		
52.216-11	Cost Contract-No Fee.	Apr 1984		
52.219-3	Notice of HUBZone Set-Aside or Sole-Source Award.	Oct 2022		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.222-1	Notice to the Government of Labor Disputes.	Feb 1997		
52.222-3	Convict Labor.	Jun 2003		
52.222-19	Child Labor-Cooperation with Authorities and Remedies.	Jan 2025		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.223-20	Aerosols.	May 2024		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	May 2024	Deviation 2025-O0004	Mar 2025
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.224-3	Privacy Training.	Jan 2017		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.225-14	Inconsistency between English Version and Translation of Contract.	Feb 2000		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-20	Limitation of Cost.	Apr 1984		
52.232-22	Limitation of Funds.	Apr 1984		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-3	Protest after Award. (Alternate I)	Aug 1996	Alternate I	Jun 1985

52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.237-3	Continuity of Services.	Jan 1991		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-3	Penalties for Unallowable Costs.	Dec 2022		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price.	Aug 1987		
52.243-1	Changes-Fixed-Price. (Alternate II)	Aug 1987	Alternate II	Apr 1984
52.243-1	Changes-Fixed-Price. (Alternate III)	Aug 1987	Alternate III	Apr 1984
52.243-2	Changes-Cost-Reimbursement.	Aug 1987		
52.243-2	Changes-Cost-Reimbursement. (Alternate II)	Aug 1987	Alternate II	Apr 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025		
52.245-1	Government Property. (Alternate I)	Sep 2021	Alternate I	Apr 2012
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-23	Limitation of Liability.	Feb 1997		
52.246-24	Limitation of Liability-High-Value Items.	Feb 1997		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-4	Termination for Convenience of the Government (Services) (Short Form).	Apr 1984		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.251-1	Government Supply Sources.	Apr 2012		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7004	Report of Intended Performance Outside the United States and Canada -Submission after Award.	Jul 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7013	Duty-Free Entry.	Nov 2023		
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings.	Jan 2023		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7000	Non-Estoppel	Oct 1966		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.239-7000	Protection Against Compromising Emanations.	Oct 2019		
252.239-7001	Information Assurance Contractor Training and Certification.	Jan 2008		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.239-7018	Supply Chain Risk.	Dec 2022		

252.242-7005	Contractor Business Systems.	Jan 2025
252.242-7006	Accounting System Administration.	Jan 2025
252.243-7001	Pricing of Contract Modifications.	Dec 1991
252.243-7002	Requests for Equitable Adjustment.	Dec 2022
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023
252.244-7001	Contractor Purchasing System Administration.	Jan 2025
252.245-7003	Contractor Property Management System Administration	Jan 2025
252.245-7005	Management and Reporting of Government Property.	Jan 2024
252.246-7003	Notification of Potential Safety Issues.	Jan 2023
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023
252.246-7008	Sources of Electronic Parts.	Jan 2023

Supplemental Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
5352.204-9002	Security Incident Reporting and Procedures	Jun 2024		

FAR Clauses Incorporated by Full Text

52.204-1 Approval of Contract. (Dec 1989)

As prescribed in 4.103 , insert the following clause:

Approval of Contract (Dec 1989)

This contract is subject to the written approval of the contracting officer and shall not be binding until so approved.

(End of clause)

52.204-2 Security Requirements. (Mar 2021)

As prescribed in 4.404(a), insert the following clause:

Security Requirements (Mar 2021)

(a) This clause applies to the extent that this contract involves access to information classified "Confidential," "Secret," or "Top Secret."

(b) The Contractor shall comply with-

(1) The Security Agreement DD Form441), including the National Industrial Security Program Operating Manual (32 CFR part 117); and

(2) Any revisions to that manual, notice of which has been furnished to the Contractor.

(c) If, subsequent to the date of this contract, the security classification or security requirements under this contract are changed by the Government and if the changes cause an increase or decrease in security costs or otherwise affect any other term or condition of this contract, the contract shall be subject to an equitable adjustment as if the changes were directed under the Changes clause of this contract.

(d) The Contractor agrees to insert terms that conform substantially to the language of this clause, including this paragraph (d) but excluding any reference to the Changes clause of this contract, in all subcontracts under this contract that involve access to classified information.

(End of clause)

52.216-7 Allowable Cost and Payment. (Aug 2018)

As prescribed in 16.307(a), insert the following clause:

Allowable Cost and Payment (Aug 2018)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th[Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other

review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) Small business concerns. A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) General and Administrative expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) Overhead expenses (final indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) Occupancy expenses (intermediate indirect cost pool). Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (i.e., General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) Subcontract information. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>.

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (e.g., trial balance, compilation, review, etc.).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) Billing rates. Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) Quick-closeout procedures. Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) Audit. At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

As prescribed in 17.208(f), insert a clause substantially the same as the following:

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

As prescribed in 17.208(g), insert a clause substantially the same as the following:

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the Period of Performance; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years and six months.

(End of clause)

52.219-14 Limitations on Subcontracting.

(Oct 2022)

As prescribed in 19.507(e), insert the following clause:

Limitations on Subcontracting (Oct 2022)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are-

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are-

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors*. An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting*. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

X By the end of the base term of the contract and then by the end of each subsequent option period; or

By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation.

(Jan 2025)

As prescribed in 19.309(c)(1), insert the following clause:

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of

the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons.

(May 2024)

As prescribed in 23.109(d)(1), insert the following clause:

Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024)

(a) Definitions. As used in this clause-

Global warming potential means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

High global warming potential hydrofluorocarbons means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at (<https://www.epa.gov/snap/>).

Hydrofluorocarbons means compounds that only contain hydrogen, fluorine, and carbon.

Ozone-depleting substance, means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) * ____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at <https://www.epa.gov/snap/>.

(End of clause)

52.232-1 Payments.

(Apr 1984)

As prescribed in 32.111(a)(1), insert the following clause, appropriately modified with respect to payment due date in accordance with agency regulations, in solicitations and contracts when a fixed-price supply contract, a fixed-price service contract, or a contract for nonregulated communication services is contemplated:

Payments (Apr 1984)

The Government shall pay the Contractor, upon the submission of proper invoices or vouchers, the prices stipulated in this contract for supplies delivered and accepted or services rendered and accepted, less any deductions provided in this contract. Unless otherwise specified in this contract, payment shall be made on partial deliveries accepted by the Government if-

(a) The amount due on the deliveries warrants it; or

(b) The Contractor requests it and the amount due on the deliveries is at least \$1,000 or 50 percent of the total contract price.

(End of clause)

52.232-8 Discounts for Prompt Payment.

(Feb 2002)

As prescribed in 32.111(b)(1), insert the following clause:

Discounts for Prompt Payment (Feb 2002)

(a) Discounts for prompt payment will not be considered in the evaluation of offers. However, any offered discount will form a part of the award, and will be taken if payment is made within the discount period indicated in the offer by the offeror. As an alternative to offering a discount for prompt payment in conjunction with the offer, offerors awarded contracts may include discounts for prompt payment on individual invoices.

(b) In connection with any discount offered for prompt payment, time shall be computed from the date of the invoice. If the Contractor has not placed a date on the invoice, the due date shall be calculated from the date the designated billing office receives a proper invoice, provided the agency annotates such invoice with the date of receipt at the time of receipt. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or, for an electronic funds transfer, the specified payment date. When the discount date falls on a Saturday, Sunday, or legal holiday when Federal Government offices are closed and Government business is not expected to be conducted, payment may be made on the following business day.

(End of clause)

52.232-25 Prompt Payment.

(Jan 2017)

As prescribed in 32.908(c), insert the following clause:

Prompt Payment (Jan 2017)

Notwithstanding any other payment clause in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer (EFT). Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(4) of this clause concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) Due date.

(i) Except as indicated in paragraphs (a)(2) and (c) of this clause, the due date for making invoice payments by the designated payment office is the later of the following two events:

(A) The 30 thday after the designated billing office receives a proper invoice from the Contractor (except as provided in paragraph (a)(1)(ii) of this clause).

(B) The 30 thday after Government acceptance of supplies delivered or services performed. For a final invoice, when the payment amount is subject to contract settlement actions, acceptance is deemed to occur on the effective date of the contract settlement.

(ii) If the designated billing office fails to annotate the invoice with the actual date of receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) Certain food products and other payments.

(i) Due dates on Contractor invoices for meat, meat food products, or fish; perishable agricultural commodities; and dairy products, edible fats or oils, and food products prepared from edible fats or oils are-

(A) For meat or meat food products, as defined in section 2(a)(3) of the Packers and Stockyard Act of 1921 (7 U.S.C.182(3)), and as further defined in Pub.L.98-181, including any edible fresh or frozen poultry meat, any perishable poultry meat food product, fresh eggs, and any perishable egg product, as close as possible to, but not later than, the 7 thday after product delivery.

(B) For fresh or frozen fish, as defined in section 204(3) of the Fish and Seafood Promotion Act of 1986 (16 U.S.C.4003(3)), as close as possible to, but not later than, the 7 thday after product delivery.

(C) For perishable agricultural commodities, as defined in section 1(4) of the Perishable Agricultural Commodities Act of 1930 (7 U.S.C.499a(4)), as close as possible to, but not later than, the 10 thday after product delivery, unless another date is specified in the contract.

(D) For dairy products, as defined in section 111(e) of the Dairy Production Stabilization Act of 1983 (7 U.S.C.4502(e)), edible fats or oils, and food products prepared from edible fats or oils, as close as possible to, but not later than, the 10 thday after the date on which a proper invoice has been received. Liquid milk, cheese, certain processed cheese products, butter, yogurt, ice cream, mayonnaise, salad dressings, and other similar products, fall within this classification. Nothing in the Act limits this classification to refrigerated products. When questions arise regarding the proper classification of a specific product, prevailing industry practices will be followed in specifying a contract payment due date. The burden of proof that a classification of a specific product is, in fact, prevailing industry practice is upon the Contractor making the representation.

(ii) If the contract does not require submission of an invoice for payment (e.g., periodic lease payments), the due date will be as specified in the contract.

(3) Contractor's invoice. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(3)(i) through (a)(3)(x) of this clause. If the invoice does not comply with these requirements, the designated billing office will return it within 7 days after receipt (3 days for meat, meat food products, or fish; 5 days for perishable agricultural commodities, dairy products, edible fats or oils, and food products prepared from edible fats or oils), with the reasons why it is not a proper invoice. The Government will take into account untimely notification when computing any interest penalty owed the Contractor.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of the mailing or transmission.)

(iii) Contract number or other authorization for supplies delivered or services performed (including order number and line item number).

(iv) Description, quantity, unit of measure, unit price, and extended price of supplies delivered or services performed.

(v) Shipping and payment terms (e.g., shipment number and date of shipment, discount for prompt payment terms). Bill of lading number and weight of shipment will be shown for shipments on Government bills of lading.

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(ix) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (e.g., 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(x) Any other information or documentation required by the contract (e.g., evidence of shipment).

(4) Interest penalty. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(4)(i) through (a)(4)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment, and there was no disagreement over quantity, quality, or Contractor compliance with any contract term or condition.

(iii) In the case of a final invoice for any balance of funds due the Contractor for supplies delivered or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(5) Computing penalty amount. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor, Government acceptance is deemed to occur constructively on the 7 thday (unless otherwise specified in this contract) after the Contractor delivers the supplies or performs the services in accordance with the terms and conditions of the contract, unless there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. If actual acceptance occurs within the constructive acceptance period, the Government will base the determination of an interest penalty on the actual date of acceptance. The constructive acceptance requirement does not, however, compel Government officials to accept supplies or services, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or

retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(6) Discounts for prompt payment. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(7) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of \$1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(7)(ii) of this clause, postmarked not later than 40 days after the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest is due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt, provided the demand is received on or before the 40th day after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40th day after payment was made.

(iii) The additional penalty does not apply to payments regulated by other Government regulations (e.g., payments under utility contracts subject to tariffs and regulation).

(b) Contract financing payment. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) Fast payment procedure due dates. If this contract contains the clause at 52.213-1, Fast Payment Procedure, payments will be made within 15 days after the date of receipt of the invoice.

(d) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.239-1 Privacy or Security Safeguards.

(Aug 1996)

As prescribed in 39.106 , insert a clause substantially the same as the following:

Privacy or Security Safeguards (Aug 1996)

(a) The Contractor shall not publish or disclose in any manner, without the Contracting Officer's written consent, the details of any safeguards either designed or developed by the Contractor under this contract or otherwise provided by the Government.

(b) To the extent required to carry out a program of inspection to safeguard against threats and hazards to the security, integrity, and confidentiality of Government data, the Contractor shall afford the Government access to the Contractor's facilities, installations, technical capabilities, operations, documentation, records, and

databases.

(c) If new or unanticipated threats or hazards are discovered by either the Government or the Contractor, or if existing safeguards have ceased to function, the discoverer shall immediately bring the situation to the attention of the other party.

(End of clause)

52.242-4 Certification of Final Indirect Costs.

(Jan 1997)

As prescribed in 42.703-2(f), insert the following clause:

Certification of Final Indirect Costs (Jan 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: _____

Signature: _____

Name of Certifying Official: _____

Title: _____

Date of Execution: _____

(End of clause)

52.243-7 Notification of Changes.

(Jan 2017)

As prescribed in 43.107 , insert the following clause:

Notification of Changes (Jan 2017)

(a) Definitions. "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this paragraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) Notice. The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within _____ (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state-

(1) The date, nature, and circumstances of the conduct regarded as a change;

(2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;

(3) The identification of any documents and the substance of any oral communication involved in such conduct;

(4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;

(5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including-

- (i) What line items have been or may be affected by the alleged change;
 - (ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;
 - (iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;
 - (iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and
- (6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.
- (c) Continued performance. Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.
- (d) Government response. The Contracting Officer shall promptly, within ____ (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-
- (1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;
 - (2) Countermand any communication regarded as a change;
 - (3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or
 - (4) In the event the Contractor's notice information is inadequate to make a decision under paragraphs (d)(1), (2), or (3) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.
- (e) Equitable adjustments.
- (1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made-
- (i) In the contract price or delivery schedule or both; and
 - (ii) In such other provisions of the contract as may be affected.
- (2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs (b) and (c) of this clause.
- Note: The phrases "contract price" and "cost" wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

As prescribed in 44.204(a)(1), insert the following clause:

Subcontracts (Jun 2020)

(a) Definitions. As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified

acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

(End of clause)

Warranty of Systems and Equipment under Performance Specifications or Design Criteria (May 2001)

(a) Definitions. As used in this clause-

Acceptance means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services rendered, as partial or complete performance of the contract.

Defect means any condition or characteristic in any supplies or services furnished by the Contractor under the contract that is not in compliance with the requirements of the contract.

Supplies means the end items furnished by the Contractor and related services required under this contract. Except when this contract includes the clause entitled Warranty of Data, supplies also mean "data."

(b) Contractor's obligations.

(1) The Contractor's warranties under this clause shall apply only to those defects discovered by either the Government or the Contractor in accordance with the PWS[Contracting Officer shall state the warranty period; e.g., "at the time of delivery;" "within 45 days after delivery," or the specified event whose occurrence will terminate the warranty period; e.g., the number of miles or hours of use, or combination of any applicable events or periods of time.].

(2) If the Contractor becomes aware at any time before acceptance by the Government (whether before or after tender to the Government) that a defect exists in any supplies or services, the Contractor shall-

(i) Promptly correct the defect; or

(ii) Promptly notify the Contracting Officer, in writing, of the defect, using the same procedures prescribed in paragraph (b)(3) of this clause.

(3) If the Contracting Officer determines that a defect exists in any of the supplies or services accepted by the Government under this contract, the Contracting Officer shall promptly notify the Contractor of the defect, in writing, within ____ [Contracting Officer shall insert the specific period of time in which notice shall be given to the Contractor; e.g., "30days after delivery of the nonconforming supplies;" "90days of the last delivery under this contract;" or "90days after discovery of the defect."]. Upon timely notification of the existence of a defect, or if the Contractor independently discovers a defect in accepted supplies or services, the Contractor shall submit to the Contracting Officer, in writing, within ____ [Contracting Officer shall insert period of time] a recommendation for corrective actions, together with supporting information in sufficient detail for the Contracting Officer to determine what corrective action, if any, shall be undertaken.

(4) The Contractor shall promptly comply with any timely written direction from the Contracting Officer to correct or partially correct a defect, at no increase in the contract price.

(5) The Contractor shall also prepare and furnish to the Contracting Officer data and reports applicable to any correction required under this clause (including revision and updating of all other affected data called for under this contract) at no increase in the contract price.

(6) In the event of timely notice of a decision not to correct or only to partially correct, the Contractor shall submit a technical and cost proposal within ____ [Contracting Officer shall insert period of time] to amend the contract to permit acceptance of the affected supplies or services in accordance with the revised requirement, and an equitable reduction in the contract price shall promptly be negotiated by the parties and be reflected in a supplemental agreement to this contract.

(7) Any supplies or parts thereof corrected or furnished in replacement and any services reformed shall also be subject to the conditions of this clause to the same extent as supplies or services initially accepted. The warranty, with respect to these supplies, parts, or services, shall be equal in duration to that set forth in paragraph (b)(1) of this clause, and shall run from the date of delivery of the corrected or replaced supplies.

(8) The Contractor shall not be responsible under this clause for the correction of defects in Government-furnished property, except for defects in installation, unless the Contractor performs, or is obligated to perform, any modifications or other work on such property. In that event, the Contractor shall be responsible for correction of defects that result from the modifications or other work.

(9) If the Government returns supplies to the Contractor for correction or replacement under this clause, the Contractor shall be liable for transportation charges up to an amount equal to the cost of transportation by the usual commercial method of shipment from the place of delivery specified in this contract (irrespective of the f.o.b. point or the point of acceptance) to the Contractor's plant and return to the place of delivery specified in this contract. The Contractor shall also bear the responsibility for the supplies while in transit.

(10) All implied warranties of merchantability and "fitness for a particular purpose" are excluded from any obligation under this contract.

(c) Remedies available to the Government.

(1) The rights and remedies of the Government provided in this clause-

(i) Shall not be affected in any way by any terms or conditions of this contract concerning the conclusiveness of inspection and acceptance; and

(ii) Are in addition to, and do not limit, any rights afforded to the Government by any other clause of this contract.

(2) Within ____ [Contracting Officer shall insert period of time] after receipt of the Contractor's recommendations for corrective action and adequate supporting information, the Contracting Officer, using sole discretion, shall give the Contractor written notice not to correct any defect, or to correct or partially correct any defect within a reasonable time at ____ [Contracting Officer shall insert locations where corrections may be performed].

(3) In no event shall the Government be responsible for any extension or delays in the scheduled deliveries or periods of performance under this contract as a result of the Contractor's obligations to correct defects, nor shall there be any adjustment of the delivery schedule or period of performance as a result of the correction of defects unless provided by a supplemental agreement with adequate consideration.

(4) This clause shall not be construed as obligating the Government to increase the contract price.

(5)

(i) The Contracting Officer shall give the Contractor a written notice specifying any failure or refusal of the Contractor to-

(A) Present a detailed recommendation for corrective action as required by paragraph (b)(3) of this clause;

(B) Correct defects as directed under paragraph (b)(4) of this clause; or

(C) Prepare and furnish data and reports as required by paragraph (b)(5) of this clause.

(ii) The notice shall specify a period of time following receipt of the notice by the Contractor in which the Contractor must remedy the failure or refusal specified in the notice.

(6) If the Contractor does not comply with the Contracting Officer's written notice in paragraph (c)(5)(i) of this clause, the Contracting Officer may by contract or other-wise-

(i) Obtain detailed recommendations for corrective action and either-

(A) Correct the supplies or services; or

(B) Replace the supplies or services, and if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner, in which case the Government is entitled to reimbursement from the Contractor, or from the proceeds, for the reasonable expenses of care and disposition, as well as for excess costs incurred or to be incurred;

(ii) Obtain applicable data and reports; and

(iii) Charge the Contractor for the costs incurred by the Government.

(End of clause)

52.246-20 Warranty of Services.

(May 2001)

As prescribed in 46.710(d), insert a clause substantially as follows:

Warranty of Services (May 2001)

(a) *Definition.* "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor in accordance with the PWS. This notice shall state either-

(1) That the Contractor shall correct or reperform any defective or nonconforming services; or

(2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperfomed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of clause)

52.247-1 Commercial Bill of Lading Notations.

(Feb 2006)

As prescribed in 47.104-4 , insert the following clause:

Commercial Bill of Lading Notations (Feb 2006)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the ____ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the ____ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. _____. This may be confirmed by contacting _____ [Name and address of the contract administration office listed in the contract].

(End of clause)

52.247-63 Preference for U.S.-Flag Air Carriers.

(Jan 2025)

As prescribed in 47.405(a) , insert the following clause:

Preference for U.S.-Flag Air Carriers (Jan 2025)

(a) Definitions. As used in this clause-

"International air transportation" means transportation by air between a place in the United States and a place outside the United States or between two places both of which are outside the United States.

United States means the 50 States, the District of Columbia, and outlying areas.

U.S.-flag air carrier means an entity granted authority to provide air transportation in the form of a certificate of public convenience and necessity under 49 U.S.C. 41102.

(b) U.S. Government-financed international air transportation. 49 U.S.C. 40118, Government-financed air transportation (commonly referred to as the Fly America Act), requires that all Federal agencies and Government contractors and subcontractors use U.S.-flag air carriers for U.S. Government-financed international air transportation of personnel (and their personal effects) or property, to the extent that service by those carriers is available. It requires the General Services Administration to issue regulations that, in the absence of satisfactory proof of the necessity for foreign-flag air transportation, disallow expenditures from funds, appropriated or otherwise established for the account of the United States, for international air transportation secured aboard a foreign-flag air carrier if a U.S.-flag air carrier is available to provide such services.

(c) Use of U.S.-flag carriers for international air transportation. If available, the Contractor, in performing work under this contract, shall use U.S.-flag carriers for international air transportation of personnel (and their personal effects) or property.

(d) Statement of unavailability of U.S.-flag air carriers. Use of U.S.-flag carriers for international air transportation. In the event that the Contractor selects a carrier other than a U.S.-flag air carrier for international air transportation, the Contractor shall include a statement on vouchers involving such transportation essentially as follows:

Statement of Unavailability of U.S.-Flag Air Carriers

International air transportation of persons (and their personal effects) or property by U.S.-flag air carrier was not available or it was necessary to use foreign-flag air carrier service for the following reasons (see section 47.403 of the Federal Acquisition Regulation): _____[State reasons]:

(End of statement)

(e) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (e), in each subcontract or purchase under this contract that may involve international air transportation.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(b), insert the following clause:

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

acquisition.gov

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

As prescribed in 52.107(d), insert the following clause in solicitations and contracts in order to revise or supplement, as necessary, other parts of the contract, or parts of the solicitation that apply after contract award, except for any clause authorized for use with a deviation. Include clear identification of what is being altered.

Alterations in Contract (Apr 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any ____ [insert regulation name] (48 CFR ____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

As prescribed in 211.274-5(a), use the following clause:

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparable as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item

identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.239-7002 Access.

(Dec 1991)

As prescribed in 239.7411(a), use the following clause:

ACCESS (DEC 1991)

(a) Subject to military security regulations, the Government shall permit the Contractor access at all reasonable times to Contractor furnished facilities. However, if the Government is unable to permit access, the Government at its own risk and expense shall maintain these facilities and the Contractor shall not be responsible for the service involving any of these facilities during the period of nonaccess, unless the service failure results from the Contractor's fault or negligence.

(b) During periods when the Government does not permit Contractor access, the Government will reimburse the Contractor at mutually acceptable rates for the loss of or damage to the equipment due to the fault or negligence of the Government. Failure to agree shall be a dispute concerning a question of fact within the meaning of the Disputes clause of this contract.

(End of clause)

252.239-7004 Orders for Facilities and Services.

(Sep 2019)

As prescribed in 239.7411(a), use the following clause:

ORDERS FOR FACILITIES AND SERVICES (SEP 2019)

(a) Definitions. As used in this clause-

"Governmental regulatory body" means the Federal Communications Commission, any statewide regulatory body, or any body with less than statewide jurisdiction when operating under the state authority. Regulatory bodies whose decisions are not subject to judicial appeal and regulatory bodies which regulate a company owned by the same entity that creates the regulatory body are not governmental regulatory bodies.

(b) The Contractor shall acknowledge a communication service authorization or other type order for supplies and facilities by-

(1) Commencing performance after receipt of an order; or

(2) Written acceptance by a duly authorized representative.

(c) The Contractor shall furnish the services and facilities under this agreement/contract in accordance with all applicable tariffs, rates, charges, regulations, requirements, terms, and conditions of-

(1) Service and facilities furnished or offered by the Contractor to the general public or the Contractor's subscribers; or

(2) Service as lawfully established by a governmental regulatory body.

(d) The Government will not prepay for services.

(e) For nontariffed services, the Contractor shall charge the Government at the lowest rate and under the most favorable terms and conditions for similar service and facilities offered to any other customer.

(f) Recurring charges for services and facilities shall, in each case, start with the satisfactory beginning of service or provision of facilities or equipment and are payable monthly in arrears.

(g) Expediting charges are costs necessary to get services earlier than normal. Examples are overtime pay or special shipment. When authorized, expediting charges shall be the additional costs incurred by the Contractor and the subcontractor. The Government shall pay expediting charges only when-

- (1) They are provided for in the tariff established by a governmental regulatory body; or
- (2) They are authorized in a communication service authorization or other contractual document.

(h) When services normally provided are technically unacceptable and the development, fabrication, or manufacture of special equipment is required, the Government may-

- (1) Provide the equipment; or
- (2) Direct the Contractor to acquire the equipment or facilities. If the Contractor acquires the equipment or facilities, the acquisition shall be competitive, if practicable.

(i) If at any time the Government defers or changes its orders for any of the services but does not cancel or terminate them, the amount paid or payable to the Contractor for the services deferred or modified shall be equitably adjusted under applicable tariffs filed by the Contractor with the regulatory commission in effect at the time of deferral or change. If no tariffs are in effect, the Government and the Contractor shall equitably adjust the rates by mutual agreement. Failure to agree on any adjustment shall be a dispute concerning a question of fact within the meaning of the Disputes clause of this contract.

(End of clause)

252.239-7016 Telecommunications Security Equipment, Devices, Techniques, and Services. (Dec 1991)

As prescribed in 239.7411(d), use the following clause:

TELECOMMUNICATIONS SECURITY EQUIPMENT, DEVICES, TECHNIQUES, AND SERVICES (DEC 1991)

(a) Definitions. As used in this clause-

(1) "Securing" means the application of Government-approved telecommunications security equipment, devices, techniques, or services to contractor telecommunications systems.

(2) "Sensitive information" means any information the loss, misuse, or modification of which, or unauthorized access to, could adversely affect the national interest or the conduct of Federal programs, or the privacy to which individuals are entitled under 5 U.S.C. 552a (the Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or Act of Congress to be kept secret in the interest of national defense or foreign policy.

(3) "Telecommunications systems" means voice, record, and data communications, including management information systems and local data networks that connect to external transmission media, when employed by Government agencies, contractors, and subcontractors to transmit-

(i) Classified or sensitive information;

(ii) Matters involving intelligence activities, cryptologic activities related to national security, the command and control of military forces, or equipment that is an integral part of a weapon or weapons system; or

(iii) Matters critical to the direct fulfillment of military or intelligence missions.

(b) This solicitation/contract identifies classified or sensitive information that requires securing during telecommunications and requires the Contractor to secure telecommunications systems. The Contractor agrees to secure information and systems at the following location: ____ (Identify the location.)

(c) To provide the security, the Contractor shall use Government-approved telecommunications equipment, devices, techniques, or services. A list of the approved equipment, etc. may be obtained from (identify where list can be obtained). Equipment, devices, techniques, or services used by the Contractor must be compatible or interoperable with (list and identify the location of any telecommunications security equipment, device, technique, or service currently being used by the technical or requirements organization or other offices with which the Contractor must communicate).

(d) Except as may be provided elsewhere in this contract, the Contractor shall furnish all telecommunications security equipment, devices, techniques, or services necessary to perform this contract. The Contractor must meet ownership eligibility conditions for communications security equipment designated as controlled cryptographic items.

(e) The Contractor agrees to include this clause, including this paragraph (e), in all subcontracts which require securing telecommunications.

(End of clause)

Supplemental Clauses Incorporated by Full Text

5352.201-9101 Ombudsman (Jul 2023)

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the

program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, PAUL W. TINKER, Lt Col, Deputy Director, Acquisition Excellence & Program Execution Directorate, AFLCMC/AQ-AZ, Office 937-255-5512 (DSN: 785-5512) and Cell: 937-477-8852. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/DRU/SMC ombudsman level, may be brought by the interested party for further consideration to the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

5352.204-9000 Notification of Government Security Activity and Visitor Group Security Agreements

(Jul 2023)

This contract contains a DD Form 254, DOD Contract Security Classification Specification, and requires performance at a government location in the U.S. or overseas. Prior to beginning operations involving classified information on an installation identified on the DD Form 254, the contractor shall take the following actions:

(a) At least thirty days prior to beginning operations, notify the Information Protection Office shown in the distribution block of the DD Form 254 as to:

- (1) The name, address, and telephone number of this contract company's representative and designated alternate in the U.S. or overseas area, as appropriate;
- (2) The contract number and military contracting command;
- (3) The highest classification category of defense information to which contractor employees will have access;
- (4) The Air Force installations in the U.S. (in overseas areas, identify only the APO number(s)) where the contract work will be performed;
- (5) The date contractor operations will begin on base in the U.S. or in the overseas area;
- (6) The estimated completion date of operations on base in the U.S. or in the overseas area; and,
- (7) Any changes to information previously provided under this clause.

(End of clause)

5352.223-9000 Elimination of Use of Class I Ozone Depleting Substances (ODS)

(Jun 2024)

(a) Contractors shall not:

- (1) Provide any service or product with any specification, standard, drawing, or other document that requires the use of a Class I ODS in the test, operation, or maintenance of any system, subsystem, item, component, or process; or
- (2) Provide any specification, standard, drawing, or other document that establishes a test, operation, or maintenance requirement that can only be met by use of a Class I ODS as part of this contract/order.

(b) For the purposes of Department of the Air Force policy, the following products that are pure (i.e., they meet the relevant product specification identified in AFI 32-7086) are Class I ODSs:

- (1) Halons: 1011, 1202, 1211, 1301, and 2402;
- (2) Chlorofluorocarbons (CFCs): CFC-11, CFC-12, CFC-13, CFC-111, CFC-112, CFC-113, CFC-114, CFC-115, CFC-211, CFC-212, CFC-213, CFC-214, CFC-215, CFC-216, and CFC-217, and the blends R-500, R-501, R-502, and R-503; and
- (3) Carbon Tetrachloride, Methyl Chloroform, and Methyl Bromide.

[NOTE: Material that uses one or more of these Class I ODSs as minor constituents do not meet the Department of the Air Force definition of a Class I ODS.]

(End of clause)

5352.242-9001 Common Access Cards (CAC) for Contractor Personnel

(Jul 2023)

(a) For installation(s)/location(s) cited in the contract, contractors shall ensure Common Access Cards (CACs) are obtained by all contract or subcontract personnel who meet one or both of the following criteria:

(1) Require logical access to Department of Defense computer networks and systems in either:

- (i) the unclassified environment; or
- (ii) the classified environment where authorized by governing security directives.

(2) Perform work, which requires the use of a CAC for installation entry control or physical access to facilities and buildings.

(b) Contractors and their personnel shall use the following procedures to obtain CACs:

(1) Contractors shall provide a listing of personnel who require a CAC to the contracting officer. The government will provide the contractor instruction on how to complete the Contractor Verification System (CVS) application and then notify the contractor when approved.

(2) Contractor personnel shall obtain a CAC from the nearest Real Time Automated Personnel Identification Documentation System (RAPIDS) Issuing Facility (typically the local Military Personnel Flight (MPF)).

(c) While visiting or performing work on installation(s)/location(s), contractor personnel shall wear or prominently display the CAC as required by the governing local policy.

(d) During the performance period of the contract, the contractor shall:

(1) Within 7 working days of any changes to the listing of the contract personnel authorized a CAC, provide an updated listing to the contracting officer who will provide the updated listing to the authorizing government official;

(2) Return CACs in accordance with local policy/directives within 7 working days of a change in status for contractor personnel who no longer require logical or physical access;

(3) Return CACs in accordance with local policy/directives within 7 working days following a CACs expiration date; and

(4) Report lost or stolen CACs in accordance with local policy/directives.

(e) Within 7 working days following completion/termination of the contract, the contractor shall return all CACs issued to their personnel to the issuing office or the location specified by local policy/directives.

(f) Failure to comply with these requirements may result in withholding of final payment.

(End of clause)

Section J - List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	TDC CLS Performance Work Statement	Performance Work Statement	1	17 Apr 2025	
02	DD 254	Contract Security Classification Specification (DD 254)	2	10 Apr 2025	
03	Government Furnished Property Attachment 3	Government Furnished Property	3	04 Apr 2025	
04	Government Furnished Equipment Attachment 4	Government Furnished Property	4	04 Apr 2025	
05	Exhibit A - Contract Data Requirements List 4 April 2025	Contract Data Requirements List (CDRL)	A	04 Apr 2025	

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.204-17	Ownership or Control of Offeror.	Aug 2020		
52.204-20	Predecessor of Offeror.	Aug 2020		
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation.	Nov 2015		
52.209-5	Certification Regarding Responsibility Matters.	Aug 2020		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.215-6	Place of Performance.	Oct 1997		
52.222-38	Compliance with Veterans### Employment Reporting Requirements.	Feb 2016		
52.225-20	Prohibition on Conducting Restricted Business Operations in Sudan-Certification.	Aug 2009		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		
52.247-53	Freight Classification Description.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.239-7009	Representation of Use of Cloud Computing.	Sep 2015		

FAR Clauses Incorporated by Full Text

52.219-1 Small Business Program Representations. (Alternate I) **(Feb 2024)** **Alternate I** **(Feb 2024)**

Alternate I (Feb 2024). As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications. **(Oct 2024)** **Alternate A** **(Oct 2024)**

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
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Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

INSTRUCTIONS TO OFFERORS

This Request for proposal is set aside for HubZone Small Business Concerns in accordance with FAR 19.1305. Proposals will be evaluated in accordance with FAR Part 15.3, DFARS 215.3, DAFFARS 5315.3.

I. Proposal Format

A. General: The following instructions cover the preparation and submittal of the Offeror's proposal for this solicitation. Offerors must follow the instructions contained herein. Offerors are cautioned that any noncompliance with the terms and conditions of the RFP may cause their proposal to be determined not eligible for award. If a joint venture arrangement exists for this acquisition, the Offeror shall provide a copy of the joint venture agreement that is signed and dated by all joint venture members as part of the proposal submission. Offerors shall submit only one proposal for the TDC CLS as the Government will review only one proposal per Offeror. The proposal shall be valid for at least 120 days from the date of submission and the proposal shall be valid for at least 120 days from the date of submission and the proposal shall note the date through which the proposal is valid. Proposals must be submitted electronically to *AFLCMC/HNIK*, *Attention: Adam Walker, Contract Specialist*, adam.walker.26@us.af.mil and Filomena Gomez, Contracting Officer, filomena.gomez@us.af.mil no later than 9 June 2025. Large Source Selection files should be transmitted via DoD SAFE at <https://safe.apps.mil>. The maximum allowable size per email is 15MB. Offerors are advised that submitting elements of a proposal across multiple emails is acceptable if doing so will ensure that the aforementioned limit is not exceeded. Should individual files exceed the aforementioned limit, Offerors are instructed to contact the Contract Specialist and Contracting Officer to coordinate submission via DoD SAFE no later than two business days prior to the proposal submission due date listed in Paragraph A to allow a link to be provided. The Government cannot guarantee that files submitted via DoD SAFE will be received instantaneously by the Government and therefore strongly advises Offerors to submit such files not later than six (6) hours prior to the proposal submission due date.

B. Communications: Exchanges of source selection information between Offerors and the Government after submission of the initial proposal packages will be controlled by the Contracting Officer. Email may be used to transmit such information only if the email can be sent encrypted and must include "Source Selection Information - See FAR2.101 and 3.104" in the subject line of the email. In order to facilitate the sending and receiving of encrypted emails, Offerors must use MS Outlook email configured to support encryption or a different email product that is S/MIME compatible and configured to support encryption. If you intend to submit your source selection information via encrypted email, you will need to contact the Buyer/Contracting Officer indicated on the face page of the solicitation prior to that first submittal in order to exchange certificates used for encryption. To ensure the process is working correctly, send a test encrypted message first (without including any source selection information). When submitting source selection information via email, file compression utilities, to include but not limited to zip files, will not be accepted.

C. Use of Non-Government Advisors:

Offerors are advised that members of the Evaluation Team may include Specialized Cost Services (SCS), Engineering and Professional Acquisition Support Services (EPASS), contractors from the following: ARS (Applied Research Solutions), Astrion; this list is not all inclusive and may change based on Government decision. Each non-Government advisor already has a Non-Disclosure Agreement with the Government, consistent with their role in the source selection, which includes an obligation to protect source selection information. As such, any proposal submitted by an Offeror to this request constitutes consent for that submission to be reviewed by military personnel, Government civilians and non-Government Advisors. Each non-Government advisor already has a Non-Disclosure Agreement with the Government, consistent with their role in the source selection, which includes an obligation to protect source selection information. As such, any proposal submitted by an Offeror to this request constitutes consent for that submission to be reviewed by military personnel, Government civilians and non-Government Advisors.

D. Organizational Conflict of Interest (OCI):

An OCI, as defined in FAR Part 2, exists when "because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage." If the Offeror identifies an OCI, the Offeror shall notify the PCO immediately, providing a thorough description of the OCI. In accordance with FAR 9.5 an Organizational Conflict of Interest (OCI) Mitigation Plan may be required.

Actual, potential, or apparent conflicts involving the Offeror's employment of former Government employees shall also be disclosed IAW FAR Part 3.

II. Volume Organization

A. General: Proposals shall be submitted to the Government in *three* separate volumes as set forth below:

Volume	Page Limits	Description
I	N/A	Completed RFP (Cross Reference Matrix)

II	20	Written Technical Proposal and past experience
III	N/A	Price Proposal Professional Employees Compensation Plan

In addition to the page limitations set forth above, proposal volumes shall comply with the following format:

1. Each volume shall be marked with the RFP number and the Offeror's name and address, and the number of the Volume, i.e. I, II, III, etc. Proposals shall be in the English language and all monies shall be proposed in United States dollars rounded to the nearest dollar.
2. Print shall be no smaller than a font size of 12. Paper size shall be 8 1/2" X 11," excluding any drawings, diagrams, and/or supporting illustrations, spreadsheets, etc. Charts, graphs, drawings, diagrams, supporting illustrations, or spreadsheets shall not be greater than 11" x 17." Each volume within the proposal shall be separately tabbed and identified. Margins shall be no smaller than 1 inch and each page within a volume shall be numbered consecutively. Elaborate formats, color presentations are not desired or required.
3. The page limitation for Volume II, Written Technical Proposal is 20 pages. The page limitations include any cover page, charts, graphs, drawings, diagrams, supporting illustrations, spreadsheets, etc., but excludes any table of contents or list of acronyms (if utilized). Offerors are cautioned that any pages that exceed the page limitations shall not be read by the Government but shall be removed and either retained in the contract file without being considered in the evaluation, or, sent back to the Offeror.
4. Page limitations may be placed on responses to Evaluation Notices (ENs), if issued. The specified page limits for EN responses will be identified in the letters forwarding the ENs to Offerors or on the EN form itself.
5. Each page containing proprietary information should be so marked.
6. Each page should contain the following legend at the bottom of each sheet:

SOURCE SELECTION INFORMATION--SEE FAR 2.101 and 3.104

7. Classified Information: There should be No classified information included in any part of any offeror's proposal.

B. Volume I, Completed RFP

1. General: Volume I, Completed RFP shall consist of the completed and signed RFP, to include any amendments issued, with a cover letter delineating any exceptions taken to the RFP terms and conditions with accompanying rationale. However, Offerors are cautioned that any noncompliance with the terms and conditions of the RFP may cause their proposal to be determined not eligible for award. Offerors shall ensure that all clauses and provisions that require "fill in" information are appropriately completed, including the proposed prices associated with the contract line items in the Schedule of the RFP Model Contract (MC). Failure to do this *may* render the offeror's proposal unawardable.
2. Cross Reference Matrix: Offerors shall include a cross reference matrix to show critical interrelationships and dependencies among the Performance-Based Work Statement (PWS), the Contract Data Requirements List (CDRL), Section L (Instructions to Offerors) and Section M (Evaluation Basis for Award).

C. Volume II, Written Technical Proposal

1. **General:** The written technical proposal shall be clear, concise, and include all the information required by this provision in sufficient detail for effective evaluation. The proposal should not simply rephrase or restate the Government's requirements, but rather shall provide convincing rationale to address how the Offeror intends to meet these requirements. Offerors shall assume the Government has no prior knowledge of their capabilities, work processes, facilities, and experience and will base its evaluation on the information presented in the Offeror's technical proposal.

2. **Format and Specific Content:** The following information shall be provided in the written technical proposal and will be evaluated under Factor 1 - Technical to assess the proposed technical approach and associated technical risk, in accordance with Section M, Evaluation criteria and Basis for Award. For each subfactor, the Offeror shall identify risks, if any, associated with the proposed approach and actions the Offeror will take to mitigate the identified risks. If no risks/mitigations are identified in the Offeror's proposal, it indicates the Offeror does not consider there to be any risk associated with their proposed approach.

Subfactor 1: Prior experience

a. Offeror's prior experience of performing same or similar requirements to the ones identified in this RFP. Experience must include contract numbers, dollar amounts, tasks, role and percentage of work accomplished on the contract by the offeror. Provide at least one but no more than three contracts. The contractor shall provide details of how prior experience with logistics functions such as Help Desk functions, troubleshooting, and diagnosis were performed. Other key functions are tracking failure rates, repair times, spares analysis, trend analysis of failures, and Original Equipment Manufacturer (OEM) warranty management. The process of ordering, tracking and expediting purchases, and shipping and receiving functions are also important.

Subfactor 2: Accounting and tracking of Government Furnished Property (GFP)

- a. The Offeror shall address PWS sections (including their subsections) 3.5, 3.6, 3.7 3.8 and Provide specifics for the actual methodology Offerors would use to accomplish the effort, and identify the risks in your proposed approach in terms of requirements capability, performance and/or schedule
- b. Offeror provides details of their existing or planned internal warehouse management and operations system that will adequately ensure GFP is controlled and accounted for properly. How the Offeror's electronic inventory database captures and stores the required data to track all required information and how you will utilize a barcoding system to compile the data.
- c. Description of the Offeror's internal warehouse management and operations that will be implemented to ensure Government Furnished Property is controlled and accounted for properly. This includes providing location, storage capability and size is sufficient to handle the requirements in this solicitation efficiently.

Subfactor 3 Transition Plan:

- a. The offeror shall provide a transition plan both phase-in and phase-out to ensure minimal disruption to the mission at the start and end of proposed contract. The plan shall be no longer than 60 days each for both phase-in/out period. It should describe the role management will play and communications with Government required to ease the transition.
- b. The offeror shall address, for the phase-in, how you will provide support no later than sixty (60) days after the beginning of contract period of performance to support incidents from any priority level. Offeror's plan and schedule provide an achievable and effective transition approach providing personnel satisfying PWS requirements and without disruption to mission capability ensuring overall incident service levels are not disrupted and the contractor can work independently to meet requirements; with proper identification of risks and risk mitigations to all areas of support due to transition and relocation of equipment in a timely manner to maximize access throughout the transition. Provide details to maximize access to equipment throughout the transition periods and work with the outgoing contractor to ensure overall incident levels are not disrupted during the transition-in/out.
- c. The Offeror must identify what management and/or contractual actions are required to initiate the transfer of items/data and what specifically needs to be transferred, how it will be transferred and how responsibility for any items physically in transit will be managed
- d. The offeror shall address, for the phase-out, how you will ensure all data pertaining to contract operations and system/network support is transferred to the in-coming contractor. Provide the course to annotate and manage status of equipment and resolution to unresolved incidents.
- e. The offeror shall provide an Integrated Master Schedule (IMS) for both phase-in/out periods for planning and tracking transition tasks. This can be an attachment to volume II and not included in the page count.

D. Volume III, Price Proposal

General Instructions

1. This request for proposal (RFP) is in accordance with FAR Part 15.002(b). Predominant Contract Type is Firm Fixed Price (FFP) with Cost Reimbursement (CR) Contract Line Items (CLINs) for Other Direct Costs (ODCs), Repairs, Spares, Equipment Shipping, Bench Stock, Consumables, and Travel. CR CLINs cost was predetermined by the Government and established as a Plug and will form part of the TEP evaluation.

2. These instructions are to assist the Offeror in preparing its price proposal. Price proposals should support the proposed technical approach and will be evaluated for Total Evaluated Price (TEP), (2) completeness, (3) reasonableness and (4) unbalanced pricing, and (5) the Employee Compensation Plan in accordance with

FAR 52.222-46. Certified Cost or Pricing Data or Data Other Than Certified Cost or Pricing Data in accordance with FAR 15.403-3 may be required if after receipt of proposals is determined that adequate competition does not exist and additional data is required to determine a fair and reasonable price. The Government may need this information in order to properly evaluate the reasonableness of the price proposed if only one compliant offer is received as per DFARS 215.371-3.

3. In accordance with FAR 16.301-3, The Offeror's accounting system must be adequate for determining costs applicable to the Cost Reimbursement (CR) CLINs. The Government will verify the adequacy of the apparently successful Offeror's accounting system prior to award.

4. The Government funds programs on a fiscal year basis of 1 October through 30 September. Proposals shall be submitted and annotated using the designated FY for Government fiscal year, or CY for calendar year for clarity.

5. Compliance with these instructions is mandatory and failure to do so could result in the rejection of the proposal. The burden of proof for credibility rests with the Offeror. Information beyond that required by these instructions shall not be submitted, unless the Offeror considers it essential to support their proposed Price.

Note: Offerors are advised that Option CLINs 4011, 4012, 4013, 4014, 4015, 4016, 4017 & 4018 are structured in accordance with FAR 52.217-8, Option to Extend Services, and if needed, may be exercised, at the discretion of the Government, in monthly increments with a total Period of Performance not to exceed six (6) months or may not be exercised at all. This six month extension of services is not to be considered part of any option period and will be a separate option if utilized. Offerors will be required to submit pricing for CLIN 4011, which will be included in the Total Evaluated Price, based upon the final option period pricing.

6. Professional Employee Compensation Plan: The professional employee compensation plan required by FAR 52.222-46 shall be submitted as a part of Volume III. The plan shall set forth salaries and fringe benefits proposed for professional employees who will work under the contract and include supporting information to enable the Government to review the proposed salaries and fringe benefits in accordance with FAR 52.222-46. Supporting information will include data, such as recognized national and regional compensation surveys and studies of professional, public and private organizations, used in establishing the total compensation structure. The Government will evaluate the plan to assure that it reflects a sound management approach and understanding of the contract requirements. This evaluation will include an assessment of the offeror's ability to provide uninterrupted high-quality work. The professional compensation proposed will be considered in terms of its impact upon recruiting and retention, its realism, and its consistency with a total plan for compensation. For the plan to be realistic, it must reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives. Offerors are cautioned that lowered compensation for essentially the same professional work may indicate lack of sound management judgment and lack of understanding of the requirement. If the Government determines a proposed compensation plan is unrealistic, the Government may rate the offeror's proposal as "Unrealistic" and it may be rejected on that basis.

Note: The compensation plan pertains to the Offeror only. However, if a populated joint venture is formed (a joint venture in which the employees are employed by the joint venture itself and not by any individual joint venture partner), the joint venture must submit the professional employee compensation plan for the joint venture. If an unpopulated joint venture is formed, each individual joint venture partner must submit its own professional employee compensation plan.

All information regarding pricing documentation must be included in the Price Volume and/or the Contract Documentation Volume. Under no circumstances shall any cost or pricing documentation be included elsewhere in the proposal.

Preliminary Determination of Adequate Price Competition

The Procurement Contracting Officer (PCO) has made a preliminary determination of adequate price competition for this acquisition. Upon examination of the initial offers, the PCO will review this determination. If, the PCO determines, adequate price competition exists no additional data will be requested and certification under FAR 15.406-2 will not be required. However, if at any time during this competition the PCO determines that adequate price competition no longer exists; Offerors may be required to submit Certified Cost or Pricing Data in accordance with FAR 15.4.

Ground Rules and Assumptions

The Offeror shall list each exception to the instructions provided in the solicitation and each qualification of the Price Volumes, if any. The Offeror shall provide complete rationale for any exceptions. Other ground rules and assumptions of the prospective contract should be provided in the appropriate sections of the proposal.

Only One Offer

In Accordance With (IAW) DFARS 215.371-1 and 215.371-3(a) if only one Offer is received, the contracting officer shall require that any cost or pricing data provided in the proposal be certified if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply. (b) Otherwise, the contracting officer shall obtain additional cost or pricing data to determine a fair and reasonable price. If the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, the cost or pricing data shall be certified. (c) If the contracting officer is still unable to determine that the offered price is fair and reasonable, the contracting officer shall enter into negotiations with the offeror to establish a fair and reasonable price.

Rounding

All dollar amounts provided shall be rounded to the nearest dollar.

Adequate Disclosure Statements

As this acquisition is a HubZone small business set-aside, Cost Accounting Standards (CAS) do not apply to small business concerns.

Subcontracts Summary

The Offeror's proposal shall uniquely identify major Subcontractors and other Subcontractors for the entire effort. To support the identified costs of Subcontractors the Offeror shall include a summary in Section 2 of the Price Volume that identifies the following: name of Subcontractor description of effort being subcontracted and type of subcontract, Subcontractor.

Subcontractor	Method of Selection	Description of Effort	Type of Subcontract			

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Oct 2009		
52.222-46	Evaluation of Compensation for Professional Employees.	Feb 1993		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7009	Proposal Adequacy Checklist.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.225-7003	Report of Intended Performance Outside the United States	Jan 2025		
252.239-7017	Notice of Supply Chain Risk.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.216-1 **Type of Contract.** **(Apr 1984)**

As prescribed in 16.105 , complete and insert the following provision:

Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed Price[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.233-2 **Service of Protest.** **(Sep 2006)**

As prescribed in 33.106 , insert the following provision:

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from _____. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

As prescribed in 52.107(a), insert the following provision:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

acquisition.gov_____ [Insert one or more Internet addresses]

(End of provision)

52.252-3 Alterations in Solicitation.

(Apr 1984)

As prescribed in 52.107(c), insert the following provision in solicitations in order to revise or supplement, as necessary, other parts of the solicitation that apply to the solicitation phase only, except for any provision authorized for use with a deviation. Include clear identification of what is being- altered.

Alterations in Solicitation (Apr 1984)

Portions of this solicitation are altered as follows:

(End of clause)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any _____ [insert regulation name] (48 CFR Chapter _____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

As prescribed at 215.408(3), use the following provision:

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement

for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

EVALUATION AND BASIS FOR AWARD

I. Basis for Contract Award

A. Source Selection Methodology: This acquisition will utilize the Best Value Tradeoff source selection procedures in accordance with FAR 15.101 as supplemented by the DoD Source Selection Procedures, dated 20 Aug 2022, referenced in DFARS 215.300 and the DAFFARS 5315.3 and its Mandatory Procedures MP5315.3 to make an integrated assessment for a best value award decision. The Government intends to award one (1) contract as a result of this solicitation to the eligible Offeror that conforms to the requirements of this solicitation and represents the best value to the Government. The Government will select the best overall offer, based upon an integrated assessment of Technical and Price. A contract may be awarded to the offeror who is deemed responsible in accordance with FAR Part 9 as supplemented whose proposal conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by Section L of this solicitation) and is judged, based on the evaluation factors and subfactors to represent the best value to the Government. This may result in an award to a higher rated, higher priced Offeror where the decision is consistent with the evaluation factors and the Source Selection Authority (SSA) reasonably determines that the technical superiority and/or overall business approach and/or superior experience of the higher priced offeror outweighs the cost difference. To arrive at a best value decision, the SSA will integrate the source selection team's evaluations of the factors and subfactors described in this provision. While the Government will strive for maximum objectivity, the tradeoff process, by its nature, is subjective; therefore, professional judgment is implicit throughout the selection process. Offerors are reminded that the Government will only evaluate one proposal from each Offeror. Award will be made to the responsible Offeror whose proposal conforms to all required terms and conditions, includes all required representations and certifications, meets all requirements set forth in the RFP, and provides the best value to the Government based on the results of the evaluation as described in paragraph II below.

B. Factors, Subfactors and Relative Importance

1. Factors and Subfactors: A detailed and complete analysis of each Offeror's proposal will be performed. The Government's evaluation will be based on the following factors and subfactors.

Factor I: Technical

Subfactor One: Prior experience

Subfactor Two: Accounting and tracking of GFP

Subfactor Three: Transition Plan

Factor II: Price

2. Relative Importance: Technical, is significantly more important, than price and the technical Subfactors are of equal importance.

II. Proposal Evaluation: The evaluation process will be accomplished as follows:

A. General

1. Discussions: It is the Government's intent to award without discussions; therefore, it is imperative that offerors submit their best terms initially. However, if during the evaluation period, it is determined to be in the best interest of the United States Government (USG) to hold discussions, the USG may conduct one or more Competitive Range determinations. The Source Selection Authority (SSA) may limit the number of Offerors in the Competitive Range for purposes of efficiency in accordance with FAR 15.306(c)(2) and FAR52.215-1(f)(4). Offeror responses to Evaluation Notices (ENs) and the Final Proposal Revision (FPR) will be considered in making the best value decision. If Offerors are excluded from the Competitive Range, they may request a debriefing IAW FAR Subparts 15.505 and 15.506. Offerors are advised that any changes or exceptions to the requirements or the terms of the RFP are subject to evaluation and may introduce risk rendering offeror's proposal unacceptable and ineligible for award.

B. Volume I, Completed RFP

1. Cross Reference Matrix: The cross reference matrix will be utilized as a tool to show critical interrelationships and dependencies among the technical requirements documents, Performance-Based Work Statement (PWS), Purchase Description (PD), the Contract Data Requirements List (CDRL), Section L (Instructions to Offerors) and Section M (Evaluation Basis for Award). The cross reference matrix will help Offerors ensure they have responded to all the evaluation criteria and proposal submittal requirements identified in the solicitation. If the matrix conflicts with any other requirement, direction, or provision of this solicitation, the other reference shall take precedence over this matrix. Section M references in the matrix are for informational purposes only, and the Government shall be obligated to evaluate proposals solely in conformance with the provisions of Section M of the solicitation.

C. Volume II, Technical Factor

1. General: Each Offeror's written technical proposal shall be evaluated by the Government based on the subfactors below, to determine if the Offeror provides a sound, compliant approach that meets the requirements of the *PWS*, and demonstrates a thorough knowledge and understanding of those requirements and their associated risks. The technical proposal shall address each of the following subfactors insufficient detail. For each subfactor, the Offeror must identify risks, if any, associated with the proposed approach and actions the Offeror will take to mitigate the identified risks. If no risks/mitigations are identified in the Offeror's proposal, it would be presumed that the Offeror does not consider there to be any risk associated with their proposed approach.

Subfactor One, Prior Experience: This subfactor requires the Offeror provide detailed examples of prior efforts they have performed that are of the same or similar requirements to those identified in this solicitation. The government will consider the degree to which the previous experiences track to the functional requirement of the TDC CLS requirements.

Subfactor Two Accounting and tracking of GFP: This subfactor requires the Offeror provides details of their existing or planned internal warehouse management and operations system that will be implemented to ensure GFP is controlled and accounted for properly. The government will evaluate the degree to which the Offeror provides a sound, compliant approach that meets the requirements of *PWS 3.5, 3.6, 3.7 and 3.8*, and demonstrates a thorough knowledge and understanding of those requirements and their associated risks. The Government will also consider the effectiveness of the proposed inventory system/database, and how well the warehousing management approach will effectively allow GFP to be controlled and properly accounted for. Positive consideration will be given if you have an ISO 9001 certification for logistics quality management. Positive consideration will be given for experience and trained personnel with the DPAS system.

Subfactor Three Transition Plan: This subfactor requires the Offeror's plan and schedule to provide an achievable and effective transition approach within 60 days of contract award. The Government will evaluate how well the offeror's approach provide the personnel and processes necessary to satisfy PWS requirements without disruption to the mission. The Government will evaluate how well the offeror's plan will maximize access to equipment throughout the transition period, and how the offeror will work with the outgoing contractor to ensure overall incident levels are not disrupted during the transition period.

2. Technical Rating:

The technical rating evaluates the quality of the offeror's technical solution for meeting the Government's requirement. Technical risk, which is manifested by the identification of weaknesses, assesses the degree to which an offeror's proposed approach for the requirements of the solicitation may cause disruption of schedule, increased costs, degraded performance, the need for increased government oversight, and the likelihood of unsuccessful contract performance. The evaluation shall address the Source Selection Team's identification of any weakness as well as the offeror's identified risks and proposed mitigation (if applicable) and document why that is or is not manageable. Each Technical subfactor identified above will receive one of the color ratings described in Table 3 of the DoD Source Selection Procedures, excepted below. Ratings will be assigned at the subfactor level and will not roll up into an overall color rating for the technical factor.

Combined Technical/Technical Risk Rating:

<i>Color Rating</i>	<i>Adjectival Rating</i>	<i>Description</i>
<i>Blue</i>	<i>Outstanding</i>	<i>Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.</i>
<i>Purple</i>	Good	<i>Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.</i>
<i>Green</i>	Acceptable	<i>Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.</i>
<i>Yellow</i>	Marginal	<i>Proposal has not demonstrated an adequate approach and understanding of the requirements and/or risk of unsuccessful performance is high.</i>
<i>Red</i>	Unacceptable	<i>Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable.</i>

D. Volume II Price Proposal Factor

Offerors' proposed Price Volume will be evaluated using one or more of the techniques defined in FAR 15.404-1. Price proposals will be evaluated for Total Evaluated Price (TEP), (2) completeness, (3) reasonableness and (4) unbalanced pricing, and (5) the Employee Compensation Plan. Offerors whose price is determined to be incomplete or unreasonable will not be considered for award. The Cost Reimbursement (CR) CLINs estimated cost values were established by the Government as plug values.

a. Total Evaluated Price (TEP)

The TEP will be calculated as the sum of the offeror proposed prices for all FFP and CR Contract Line Items (CLINs) and subCLINs including the base period including all options. The estimated cost values of the Cost Reimbursement (CR) CLINs were predetermined by the Government as plug values and will form part of the TEP.

b. Completeness:

Proposals will be reviewed to determine the extent to which all Contract Line Items (CLINs) have been priced in accordance with the CLIN Structure included on the Model Contract (MC). The Offeror's proposed price and other information will be evaluated to ensure all price elements were addressed and calculations are accurate. The review will determine the adequacy of the Offeror's proposal in addressing and fulfilling the requirements of the solicitation.

c. Reasonableness

For a price to be reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business. The Government will determine prices fair and reasonable through the use of one or more of the price analysis techniques at FAR 15.404-1(b)(2). If adequate competition exists, it will establish price reasonableness.

d. Unbalanced Pricing

Offerors are cautioned against submitting a materially unbalanced pricing. Unbalanced pricing may increase performance risk and could result in payment of unreasonably high prices. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more Contract Line Item Numbers (CLINs) is significantly over or understated as indicated by the application of cost or price analysis techniques. The Government will analyze offers, including all Options to determine whether they are unbalanced with respect to separately priced line items or subline items. Offers that are determined to be unbalanced may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government (FAR 15.404-1(g)).

e. Compensation Plan

The Government will evaluate the realism of the offeror's Professional Employee Compensation Plan in accordance with FAR 52.222-46, Evaluation of Compensation for Professional Employees. For the plan to be realistic, it must reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives. Offerors are cautioned that lowered compensation for essentially the same professional work may indicate lack of sound management judgment and lack of understanding of the requirement. If the Government determines a proposed compensation plan is unrealistic, the Government may rate the offeror's proposal as "Unrealistic" and it may be rejected on that basis.

Total Evaluated Price (TEP)

The total evaluated price for award purposes will be the sum of the following:

- a. FFP CLIN 0001 will be evaluated at its proposed price
- b. FFP Options CLIN 1000, 2000, 3000 & 4000 series will be evaluated at their proposed prices
- c. All CR CLINS and CR Option CLINs will be Government-established Not To Exceed (NTE) cost values known as a Plug. CR CLINs will form part of the TEP.
- d. If any Government-Owned Facilities, GFE/P/I/S/S, and Government Support is proposed and accepted by the Government above what is identified in Attachments 3&4 the RFP, the Government computed equivalent value will be added to the TEP.
- e. Evaluation of Options

All options under the contract will be evaluated as indicated above; however, evaluation of options shall not obligate the Government to exercise such options.
- f. Evaluation of 6-month Options CLINS in Accordance with FAR 52.217-8, Option to Extend Services:

FFP Option CLIN 4011 is structured in accordance with FAR 52.217-8, Option to Extend Services forms part of the TEP and will be evaluated as indicated above. Evaluation of CLIN 4011 does not constitute a Government obligation to exercise the option. The six month extension of services is not to be considered part of any option period and will be a separate option exercised, if utilized. The Government will develop the TEP which will include this pricing based on the contractor's final option period pricing.

FAR Clauses Incorporated by Full Text**52.217-5 Evaluation of Options.****(Jul 1990)**

As prescribed in 17.208(c), insert a provision substantially the same as the following:

Evaluation of Options (July 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)